

THE IRRESPONSIBILITY OF THE JUDICIARY.

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It is one of the oldest and most firmly settled rules of the common law, that a judicial officer is not liable to an action for damages resulting from the doing of any act within his jurisdiction, whether done *bona fide*, in the discharge of what he honestly believed his duty, or done maliciously and from a corrupt motive. If he had jurisdiction, he is secure. This rule was adopted, as was said by Lord GIFFORD, in *Miller v. Hope*, 2 Shaw, Sc. App. Cas. 125, since, if such an action would lie, the judges would lose their independence, and the absolute freedom and independence of the judges is necessary for the administration of justice. HAWKINS, (P. C. b. I, c. 7, p. 6,) states this reasoning a little more at length. "The authority of government cannot be maintained," he says, "unless the greatest credit be given to those who are so highly entrusted with the administration of public justice, and that if they should be exposed to the prosecution of those whose partiality to their own causes would induce them to think themselves injured, it would be impossible for them to keep up in the people that veneration of their persons, and submission to their judgments, without which it is impossible to execute the laws with vigor and success."

This rule has been followed with the greatest unanimity. In *Floyd v. Barker*, 12 Co. Rep. 223, the judge and the grand jury were held not liable to be sued in the Star Chamber for a conspiracy in respect of their acts in court, in convicting a person of felony. In *Hamond v. Howell*, 2 Mod 219, a judge who committed for an alleged contempt, under a warrant showing that in truth no contempt had been committed, was held not liable in trespass, because he had jurisdiction over the question, and his mistake in judgment was no cause of action. The same was the basis of the decision in *Cave v. Mountain*, 1 M. & G. 257, where the justice had committed the plaintiff on an infor-